

26STCV04261 26STCV04261

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Case Number: 26STCV04261 Hearing Date: August 25, 2026 Dept: 400

MOTION FOR SANCTIONS

The Court

tenders the following tentative decision in the matter Marta Cabrera v. FCA US, LLC, et al., Los Angeles County Superior Court case number 26STCV04261, set for hearing on August 25, 2026. FCA US, LLC and Glendale Chrysler Jeep Dodge Ram (collectively, Defendants) move for an order imposing sanctions on Marta Cabrera (Plaintiff) pursuant to Code of Civil Procedure section 871.26. Plaintiff opposes the motion. Defendants' motion is granted.

A.

Legal Standard

In civil

actions seeking restitution or the replacement of a motor vehicle pursuant to Code of Civil Procedure section 871.20, within 60 days of the filing of an answer or other responsive pleading, "all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).) Sanctions of \$1,500 and \$2,500 are required against a plaintiff or defendant, respectively, that fails to comply with section 871.26, subdivision (b), absent a showing of good cause. (Id. § 871.26, subd. (j)(1).)

B. Discussion

Defendants seek an order from the

Court imposing sanctions pursuant to section 871.26, subdivision (j)(1). Plaintiff

filed the present action on February 14, 2025. Defendants filed their responsive pleading, a demurrer, on May 5, 2025. Initial disclosures were thus due by July 4, 2025. Plaintiff served initial disclosures on July 28, 2025, but did not produce all required documents under section 871.26, subdivision (g). (Lopez Decl. ¶¶ 4–7.) Thus, Plaintiff has failed to comply with the requirements of section 871.26.

Plaintiff argues that good cause exists to relieve it from sanctions, as allowed under section 871.26, subdivision (j). Plaintiff alleges that her initial disclosures provided the information readily available to her and counsel at the time. (Khatchadourian Decl. ¶ 6.) Plaintiff did not intend to withhold records by failing to submit them; rather, Plaintiff noted that Defendants could access the relevant documents within their own dealer portal. (Id. ¶ 10.) Plaintiff further intended to supplement the responses later. (Id. ¶ 13.) However, Plaintiff needed to comply with initial disclosure requirements by a certain date and failed to do so. Merely acknowledging that responses were not timely provided does not constitute good cause. Accordingly, Defendant's motion for sanctions is granted.

C. Conclusion

The Court grants Defendant's motion. Plaintiff shall pay \$1,500 to defense counsel within 30 days.